



POLICE DEPARTMENT

May 20, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-030546
Police Officer Aisha Ward	:	
Tax Registry No. 939673	:	
114 Precinct	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Clair Tzeng, Esq.
Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Aisha Ward, while off duty and assigned to the 114 Precinct, on or about February 25, 2024, March 9, 2024, and March 18, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer Ward used Department computer systems for reasons unrelated to official Department business.

P.G. 219-14, Page 1, Paragraph 2;
Page 2, Additional Data

MISUSE OF DEPARTMENT
COMPUTER SYSTEMS

2. Said Police Officer Aisha Ward, while off duty and assigned to the 114 Precinct, on or about February 25, 2024, March 9, 2024, and March 18, 2024, failed to comply with a lawful order given by Sergeant Eric Chow during a previous Administrative Guide hearing that was held on February 28, 2022. *(As added)*

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH ORDERS

3. Said Police Officer Aisha Ward, while on duty and assigned to the 114 Precinct, on or about September 10, 2024, made misleading statements during her official Department interview when she repeatedly stated that she did not know why she had used Department computer systems for reasons unrelated to official Department business. *(As added)*

A.G. 304-10, Page 1

FALSE OR MISLEADING
STATEMENTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 17, 2025.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Maurice Moore as a witness. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty-in-Part of Specifications 1 and 2, Not Guilty of Specification 3, and recommend a penalty of 50 vacation days and one-year dismissal probation.

ANALYSIS

It is alleged that on three separate dates in February and March of 2024, Respondent wrongfully used the NYPD's computer systems to conduct searches unrelated to official Department business. She did so despite being instructed, two years earlier, that the computer systems should be used only for work. Additionally, Respondent is accused of making misleading statements when questioned about some of these computer searches at an official Department interview on September 10, 2024.

In 2022, prior to the events in this case, Respondent was investigated for criminal association and computer misuse. On February 28, 2022, she was questioned at an official Department interview about those accusations. (Dept. Exs. 4 & 4A) At the conclusion of the interview, a sergeant had Respondent read aloud the provision from Patrol Guide Section 219-14, which instructs MOS that the NYPD's computer systems should only be used for the business of the Department. The sergeant then reiterated that Respondent should use the computer systems "for work only, not personal." (Dept. Ex. 4A at 23-24) Respondent later pleaded guilty to the accusations in that case, and forfeited 31 vacation days.

A little over a year after the resolution of that matter, a DAS audit of Respondent's use of her Department cell phone revealed additional allegedly improper searches that are the subject matter of this case. (Dept. Ex. 6; Tr. 26-30) Sergeant Maurice Moore of IAB, who assisted in the investigation, testified regarding these searches based on his review of the records:

First, on February 25, 2024, Respondent, while off duty, used her phone to search two 911 jobs from addresses near her residence. One of the calls, which involved a large family dispute with weapons, and approximately 100 people at the location, originated from a home on the same block as Respondent's residence. (Dept. Exs. 6D-6E; Tr. 44-51, 53, 67-69)

Second, on March 9, 2024, Respondent, while off duty, twice searched a phone number belonging to an individual named Shawnta Mays. As part of that search, Respondent looked up two 911 jobs and reviewed the related documents. Among these documents was a complaint report filed by Mays in January 2024 at the 114 Precinct, where Respondent was assigned, in which Mays reported that she had been the victim of identity theft. Other than Respondent's search of these records, the investigation by IAB did not uncover any connection between Respondent and Mays. (Dept. Exs. 6B-6C; Tr. 35-43, 52, 63-66)

Third, on March 18, 2024, police were dispatched to Respondent's residence in response to an anonymous phone call reporting a dispute inside the home. Upon arrival, the officers determined there was no need for any police action and they departed. After they left, Respondent, who was off duty, used her Department phone to find out who made the 911 call, and learned that it had been placed by her ex-husband, who had stated that Respondent and her new husband were arguing and fighting. The ex-husband told the 911 call-taker that he wanted to remain anonymous. (Dept. Ex. 2) Nevertheless, after using her phone to ascertain who had called the police, Respondent phoned her ex-husband and questioned him about making the call. The ex-husband then called a 911 supervisor to complain that his identity as the caller had been revealed. (Dept. Exs. 3, 6A; Tr. 24-25, 32-35, 52-55, 60-63)

In her official Department interview on September 10, 2024 (Dept. Exs. 5 & 5A), Respondent did not dispute that while off duty, she used her Department phone to conduct the above searches on three separate dates. She was first questioned about the March 18 incident, in which police officers responded to her home in response to a call of a dispute. Respondent conceded that she did use her phone to find out who placed the call, and stated that she did not realize there was anything wrong with that. When questioned about the March 9 computer

searches involving the phone number of Shawnta Mays, Respondent did not dispute that she twice ran checks on the phone number, but insisted she did not recognize the number, did not know Mays, and did not have any idea why she conducted the searches. With respect to February 25, Respondent did not deny that she conducted searches that day on two 911 jobs in the vicinity of her residence, though she could not recall the reasons for the searches. She did mention that there were times when the police are blocking traffic near her home and she would look at 911 jobs to determine what was going on. Respondent speculated that she may have conducted the searches on February 25 for that purpose, though she did not have a specific recollection of doing so. (Dept. Ex. 5A at 10, 15-25)

At trial, Respondent similarly did not dispute that she used her Department phone to conduct these searches. With respect to the incident where police responded to her home on March 18, Respondent testified that she immediately identified herself to the officers and assured them there was no fight going on there. Respondent admitted that once the officers left, she used her Department phone to look up who had called 911, because she “wanted to know who called the police and said that.” After she retrieved the information, Respondent phoned her ex-husband to ask why he had called. (Tr. 81-85, 92-94)

Regarding the two phone searches of Shawnta Mays’s number on March 9, Respondent did not dispute that she used her Department phone, while off duty, to conduct those searches. She testified that she did not, however, have any recollection as to why she did so, and was not intending to be misleading with her answers during her Department interview. Respondent maintained that she still does not even know who Mays is. Respondent stated it was possible that when Mays came to the 114 Precinct two months earlier in January to make a complaint about identity theft, the two of them may have interacted, even though Respondent was assigned

to the domestic violence unit at the time. Respondent acknowledged that she had no specific memory of such encounter, and was only speculating as to how she may have come across Mays's phone number. (Tr. 86-87, 90-92, 95-96)

With respect to the computer checks on February 25, which included a job search involving a large dispute with weapons in her neighborhood, Respondent again did not dispute that she used her phone to conduct these inquiries. She testified, however, that she did not specifically recall why she made the searches, and maintained that she was not trying to mislead her questioners during her Department interview. Just as she had stated during that interview, Respondent suggested that there might have been a police presence shutting down access to her block, and she may have searched the jobs "to see what was going on." She insisted that she did not conduct these computer searches at anyone's request, and did not share the information with anyone. (Tr. 86-90)

Specification 1 charges Respondent with wrongfully using the NYPD's computer systems for reasons unrelated to official Department business on three separate dates in 2024. Specifically, it is alleged that she wrongfully used her Department phone to conduct searches on February 25, March 9, and March 18. Section 219-14 of the Patrol Guide states that members of the service may only use the Department's computer systems for official inquiries relating to the business of the Department. "Use of Department computer systems for personal or non-Department business matters is strictly prohibited."

The records in evidence indicated that Respondent, while off duty, did use her Department phone for these searches. (Dept. Ex. 6) Respondent, in her official Department interview and trial testimony, essentially conceded that she conducted them as well. At issue is

whether the Department Advocate has met its burden of proving that the searches were not related to the business of the Department and therefore constitute misconduct.

With respect to the inquiries on the first two dates, Respondent did not specifically recall why she conducted the searches, though she did not dispute that she used her phone to do so. Although she could not provide a definitive explanation for these searches, she did suggest that there may have been legitimate police reasons for conducting them. For instance, Respondent credibly testified that the February 25 searches may have occurred after she observed a large police presence on her block, which would have prompted a valid concern on her part, as an officer, to want to know what was going on. With respect to the March 9 searches, Respondent suggested she may have encountered Shawnta Mays inside the 114 Precinct when Mays came there to file a complaint report in January, and followed up on that interaction with the phone inquiries two months later.

Moreover, the burden rests with the Department Advocate to prove that the computer inquiries were not related to the business of the Department. Just because the searches were conducted while Respondent was off duty does not necessarily mean they were not business-related. No evidence was presented establishing that these searches were conducted for personal reasons. Also, there was a lack of evidence from which to infer that the searches were wrongful: there was no indication, for instance, that these inquiries were made at some third party's request, or that Respondent wrongfully shared the information with anyone. On this particular record, the evidence has failed to establish that the searches conducted on February 25 and March 9 constituted misconduct, and I find Respondent Not Guilty regarding these searches.

In contrast, the phone search on March 18 did constitute misconduct. Respondent admitted using her Department phone to find out who had placed the 911 call that brought police

officers to her home. She conducted this search strictly for personal reasons, because she wanted to know who called the police on her. Respondent then used that information to confront the caller, her ex-husband. As such, in this incident the credible evidence did establish that the search did not relate to the business of the Department. Accordingly, I find Respondent Guilty of wrongfully conducting the computer search on March 18, 2024.

Specification 2 charges Respondent with failing to comply with a lawful order, in that she wrongfully used her Department phone to conduct multiple searches after having previously been instructed by a sergeant that the NYPD's computer systems should not be used for personal reasons. That order was given on February 28, 2022, when the sergeant reminded Respondent of the applicable Patrol Guide procedure and instructed her that she should use the Department's computers for business purposes only.

Section 304-03 of the Administrative Guide requires members of the service to "obey lawful orders and instructions of supervising officers." Since the record failed to prove that the searches on February 25 and March 9 constituted misconduct, the evidence similarly failed to establish that Respondent disobeyed a lawful order by conducting those searches. However, for reasons discussed above, Respondent did act contrary to the sergeant's order when, on March 18, she wrongfully used her Department phone to search who had called the police to her home. By conducting this computer inquiry for personal reasons after having been instructed not to do so, Respondent failed to obey a lawful order, and I find her Guilty-in-Part of Specification 2.

Specification 3 charges Respondent with making misleading statements during her official Department interview on September 10, 2024. Specifically, when asked about her use of her phone on February 25 and March 9, 2024, Respondent repeatedly stated that she did not remember conducting the searches or why she did so.

Section 304-10 of the Administrative Guide defines a “misleading statement” as one that is intended to misdirect the fact finder, including repeated claims of “I do not remember” or “I do not know,” when a reasonable person in that situation would have remembered. At issue here is whether the Department Advocate has met its burden of proving, by a preponderance of the credible evidence, that Respondent’s answers at the interview were deliberately misleading.

Based on the evidence presented, I am not persuaded that the Department Advocate has met its burden of proving that Respondent was being deliberately misleading with her answers. During the interview, she did not deny conducting the searches, but merely stated that she could not recall any details as to why she ran the inquiries on two of the three dates. Based on IAB’s investigation, no connection was uncovered establishing any kind of link between Respondent and Shawnta Mays other than the phone searches on March 9. Similarly, with respect to the phone searches on February 25, the only evidence uncovered was that one of the 911 callers resided on the same block as Respondent; otherwise, there was no evidence connecting Respondent to the 911 callers in a way that would suggest she was deliberately withholding information during the interview.

Moreover, six or seven months elapsed between the phone searches and when Respondent was questioned about them on September 10, 2024. The evidence presented did not support a finding that a reasonable person in Respondent’s situation would have remembered the details in question. I credit Respondent’s trial testimony that she genuinely could not recall why she made the specific searches, and that she was not intending to be misleading with her answers at the Department interview. Accordingly, I find Respondent Not Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed as a Police Officer on July 11, 2005, after previously serving as a School Safety Officer, has been found Guilty of wrongfully using her Department phone on March 18, 2024 to conduct a search that was unrelated to official Department business. She also has been found Guilty of failing to comply with a lawful order from a supervisor instructing her not to use the Department's computer systems for such purposes. The Department Advocate asks for a penalty of separation from the Department, while counsel for Respondent argues that Respondent, who has never been modified in more than 20 years of service, should be permitted to remain on the job.

In making its penalty recommendation, the Department Advocate argues that this is a recurring problem with Respondent that warrants a penalty of separation. To be sure, it is of particular concern that in 2023, Respondent forfeited 31 vacation days after pleading guilty to computer misuse and criminal association that occurred in 2021. In that case, Respondent associated with an individual with a criminal past, whom she later married. She then wrongfully ran computer inquiries connected to that relationship. As discussed below, this history is a relevant factor in determining an appropriate penalty for Respondent, but it does not support separation in this matter.

With respect to Specification 1, the presumptive penalty for computer misuse is 10 penalty days, with an aggravated penalty of 20 days. However, under the principle of progressive discipline, a higher penalty, which includes a period of monitoring, is warranted. Since Respondent's prior misconduct in the 2023 matter resulted in a penalty of more than 15 days, this second incident of computer misuse, less than 10 years later, shall result in a penalty increase to 20-30 days and dismissal probation. (Matrix, p. 12)

In determining the number of penalty days to be assessed, it is troubling how Respondent used her Department phone to conduct a computer search unrelated to official business on March 18. She wrongfully accessed private information regarding who placed the 911 call that sent police to her home. Making matters worse, after learning who placed the call, Respondent then used that information to call and confront her ex-husband, after he had stressed to the call-taker that he wanted to remain anonymous.

Additionally, in 2012 Respondent received a Command Discipline and forfeited 1 vacation day for computer misuse that occurred in 2011. Although not a formal finding, this Command Discipline may also be considered an aggravating factor in calculating the penalty for the current misconduct. (Matrix, p.11) On balance, I find that the forfeiture of thirty (30) vacation days for Respondent's computer misuse is appropriate here, along with dismissal probation for a period of one year.

With respect to Specification 2, the presumptive penalty for disobeying a lawful order is 20 days, while the aggravated penalty is 30 days. Under the specific circumstances in this case, where Respondent disobeyed the order on one occasion, the presumptive penalty is appropriate. The order Respondent failed to follow involved a general admonition in 2022 that she should not use the Department's computer systems for personal reasons. To be clear, Respondent remains

responsible for adhering to the Administrative Guide, and there needs to be accountability for disobeying the order. But under these specific circumstances, where Respondent does not have a history of disobeying orders in more than 20 years with the Department, the presumptive penalty of twenty (20) vacation days is appropriate.

Since Respondent not only misused the Department's computer systems, which is itself misconduct, but also did not adhere to a lawful order from a supervisor, consecutive penalties should be imposed for these distinct offenses. Taking into account the totality of the facts and circumstances in this matter, I recommend that Respondent forfeit a total of fifty (50) vacation days, and that she be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

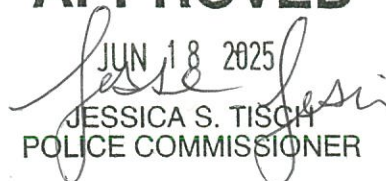
Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED

JUN 18 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER AISHA WARD
TAX REGISTRY NO. 939673
DISCIPLINARY CASE NO. C-030546

Respondent was appointed to the Department as a Police Officer on July 11, 2005, having previously served as a School Safety Agent from March 2, 2001 through July 10, 2005. On her three most recent annual performance evaluations, she was rated “Exceeds Expectations” for 2023 and 2024, and received a 4.5 rating of “Extremely Competent/Highly Competent” in 2022. She has been awarded two medals for Excellent Police Duty.

In July 2023, Respondent forfeited 31 vacation days after pleading guilty to criminal association over a period of four months, using the Department’s computer systems to conduct five queries unrelated to Department business, and failing to update her marital status in Department records.

In November 2023, Respondent was placed on Level 2 Discipline Monitoring. Monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials